

FEDERAL MARITIME COMMISSION

USL AUTO EXPORTING INC.,	)	
	)	
Complainant,	)	
	)	
vs.	)	DOCKET NO. 23-13
	)	
EASY SHIPPING CORPORATION,	)	
	)	
Respondent.	)	

RESPONDENT’S PROPOSED FINDING OF FACTS

NOW COMES the Respondent, EASY SHIPPING CORPORATION, by and through their attorney, RAFATI, WARD & ASSOCIATES, P.C., and for their Proposed Finding of Facts pursuant to the scheduling order entered on March 18, 2024 state as follows:

Respondent, EASY SHIPPING CORPORATION (hereinafter referred to as “Easy Shipping”) is a United States corporation formed in Illinois. Easy Shipping is a licensed non vessel ocean carrier that performs all the services of a carrier and freight forwarder under 46 CFR § 515.11 and 46 CFR §515.21. Complainant, USL AUTO EXPORTING INC. (hereinafter referred to as “USL”) is a North Carolina limited liability company. USL exports vehicles from the United States to other foreign countries. USL is a cargo owner as defined by 46 U.S.C. § 40102(22).

On or about April 13, 2023, Khalid Arwini (“Khalid”) sent a request to Easy Shipping to ship four vehicles from Savannah, Georgia to Al Khoms, Libya by sending the request to Easy Shipping via email (**See Appendix Exhibit A**). Khalid requested that this shipment be setup with CMA CGM (“CMA”) as the ocean carrier. Easy Shipping began the booking process and began to gather information about the items to be shipped in order to submit this information to CMA. At all times relevant during the booking process, all information and documentation that was tendered to CMA as the ocean carrier was information provided to Easy Shipping by Khalid. Upon receipt

of all the relevant information and documentation from Khalid, Easy Shipping secured the booking for Khalid with CMA (See **Appendix Exhibit B**). Easy Shipping sent Khalid a booking confirmation via email on April 17, 2023 (See **Appendix Exhibit C**). The following day, after receiving the booking information from Easy Shipping, Khalid began the process of loading the container under booking number NAM6206412 (See **Appendix Exhibits D and E**). On or about April 20, 2023, the loader company prepared and loaded the container and provided Easy Shipping with a dock receipt of the booking (See **Appendix Exhibit F**). The next day, the container was loaded onto the vessel. On April 24, 2023, the Respondent submitted the Electronic Export Information sheet to the ocean carrier (See **Appendix Exhibit G**). On April 26, 2023, CMA sent an email to the Respondent questioning the Yamaha, CMA questioned whether this Yamaha was a motorcycle or a water vehicle (See **Appendix Exhibit H**). On April 26, 2023, the Respondent sent a response to CMA that the Yamaha is a motorcycle according to information submitted by the Complainant (See **Appendix Exhibit I**). CMA then sent a request to the Respondent to submit photographs of the Yamaha (See **Appendix Exhibit J**). The Respondent reached out to the Complainant and advised him that CMA is requesting photographs and the Complainant sent two photos to the Respondent (See **Appendix Exhibit K**). On May 1, 2023, the Respondent forwarded these photos to CMA via email and CMA replied to this email that they are in receipt of the photos and will respond after review (See **Appendix Exhibit J**). On May 11, 2023, CMA CGM reached out to Easy Shipping via email and reported a misdeclaration in the shipping instructions for the cargo and the Respondent sent this email to the Complainant and the Complainant replied that this must be a “typo or mistake in the loading plans” (See **Appendix Exhibits L and M**). Easy Shipping did not play any role in the transportation of the items, warehousing of the items, loading the items into the container, nor in delivery of the container to the port of loading in Savannah, GA and therefore forwarded this email of misdeclared cargo to Khalid (See **Appendix Exhibits L and**

M).

On or about May 11, 2023, CMA sent an email to Easy Shipping informing Easy Shipping that one of the items is prohibited from import into the country of Libya, mainly the Toyota Tundra which Khalid had reported as a Toyota 4Runner (**See Appendix Exhibits L and M**). Upon receiving this email, Easy Shipping forwarded the email immediately to Khalid. In response to this email from CMA, which was forwarded to Khalid, Khalid sent Easy Shipping a message stating that this is a mistake, and the actual vehicle is a Toyota 4Runner and gave Easy Shipping a VIN number to this 4Runner which was then given to CMA (**See Appendix Exhibits L and M**). Sometime after May 11, 2023, and after Easy Shipping sent the VIN to CMA, CMA sent a second email, but this email was regarding a Yamaha which Khalid had listed as a Yamaha Motorcycle. CMA believed this item may be a Jet Ski or some type of water vehicle which is banned from import into Libya. Easy Shipping forwarded this email to Khalid and in response to this email, Khalid stated to Easy Shipping that “it may look like a jet ski because maybe the wheels are not on it.” Easy Shipping informed CMA of the same. CMA then sent a request to Easy Shipping asking for photographs of the Yamaha. Easy Shipping forwarded this request to Khalid, and in response to this request, Khalid sent Easy Shipping two photographs of a Yamaha which were then forwarded to CMA.

In the end of May of 2023, CMA was still verifying and reviewing the booking. CMA informed Easy Shipping that they received the photographs and that after reviewing a decision will be made and CMA will inform Easy Shipping. At this juncture, Khalid was aware of all these developments and was directly giving Easy Shipping all of the information that was to be submitted to CMA. After their review was completed, CMA informed Easy Shipping that the Yamaha was in fact a Jet Ski and not a motorcycle and this item is prohibited from import into Lybia. Easy Shipping informed Khalid of this development and Khalid then wanted to bring the

container back to Savannah and “fix things” and then resend the items (**See Appendix Exhibit N**).

Khalid hired a third party that handles return shipments and imports into the United States as Easy Shipping does not offer those services, Khalid is aware of this because Khalid has done business with Easy Shipping in the past on several occasions. Khalid hired a third party to work on getting the cargo back and then began to submit payments to Easy Shipping which were past due for a prior shipment but not payments for this shipment that is the subject of this action, this resulted in a late fee being assessed by CMA in the amount of \$75. Fast forward to July 6, 2023, Khalid seems to have secured the return of the cargo and reached out to Easy Shipping informing them the container is back in Savannah, GA although Easy Shipping had not received any communication from CMA regarding the release and return of the cargo at this time (**See Appendix Exhibit O**).

Approximately 2 months later, in September of 2023, Easy Shipping received an automated email from CMA informing Easy Shipping that the cargo had been returned and released in July of 2023, this email is known as the discharge of cargo notification (**See Appendix Exhibit P**). On August 9, 2023, the Complainant requested from Respondent the bill of lading so that he may complete the IFS with a third party who was handling the return of the shipment (**See Appendix Exhibit Q**). It is this time period between May of 2023 and September of 2023 that Easy Shipping believes Khalid was contacting and communicating with CMA as if he was Easy Shipping. This was later discovered when Khalid sent an email directly to CMA and when CMA replied to that email, they copied Easy Shipping on it. CMA copying Easy Shipping on this reply lead to the disclosure of a thread of emails that Khalid was sending to CMA falsely representing himself to CMA as Easy Shipping (**See Appendix Exhibits R and S**). Upon learning of this and upon realizing that Khalid was submitting false information and impersonating himself as an employee/agent of Easy Shipping, Easy Shipping began to limit their communications and dealings with Khalid. Easy Shipping informed Khalid of the fees that need to be paid and upon Khalid paying the fees, they

were immediately sent to CMA. Any payments that were late to CMA or delayed were because Khalid would be late in paying Easy Shipping or Khalid failed to submit payment to Easy Shipping.

Although Complainant USL Auto Exporting, at all times relevant, Easy Shipping was always under the impression that Khalid was a sole proprietor not operating under any legal entity. Further, Easy Shipping has never communicated with, never knew of, nor was aware of any legal entity USL Auto Exporting nor an individual by the name of Anis Houssein, the individual actively participating in these proceedings. Easy Shipping never inspected any cargo, only submitted information to CMA or any other party that was given to them by Khalid, and Easy Shipping was clearly given false information intentionally by Khalid which is a clear indication that Khalid always knew what he was doing was prohibited and made attempts to defraud the system to sneak his items into Libya.

Respectfully submitted,

/s/ Fadi Y. Rafati
Respondent's Attorney

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